

Smti Angshumala Kalita vs Rituparna Mahanta on 20 January, 2023

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Bench: Devashis Baruah

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GAHC010158672022

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Tr.P.(C)./80/2022

SMTI ANGSHUMALA KALITA
W/O SRI RITUPARNA MAHANTA, D/O SRI NARENDRA NATH KALITA, P/R/A
NEAR BANK COLONY, PARBOTIA, P.O., P.S. AND DIST-TINSUKIA, ASSAM,
PIN-786125

VERSUS

RITUPARNA MAHANTA
S/O SRI ATUL CHANDRA MAHANTA, R/O JUGONIA GAON, DHEKIAL, P.O. -
GANAKPUKHURI, P.S.-DERGAON, DIST-GOLAGHAT, ASSAM, PIN-785622

Advocate for the Petitioner : MR. B DUTTA

Advocate for the Respondent : MR SARFRAZ NAWAZ

BEFORE
HONOURABLE MR. JUSTICE DEVASHIS BARUAH

ORDER

Date : 20-01-2023 Heard Mr. J. Das, learned counsel for the Petitioner and Mr. S.A. Barbhuyan, learned counsel for the Respondent.

2. This is an application filed under Section 24 read with Section 151 of the Code of Civil Procedure, 1908 seeking transfer of Matrimonial Title Suit No. Page No.# 2/4 05/2022 from the Court of learned District Judge, Golaghat to the Court of learned District Judge, Tinsukia.

3. The case of the Petitioner is that the marriage between the Petitioner and the Respondent was solemnized on 23.11.2017 as per Hindu rites and customs and out of the said wedlock, a female child was born on 18.12.2018. The Respondent is engaged in different businesses in Guwahati and after their marriage, the Petitioner moved to Guwahati along with the Respondent.

4. It is the further case of the Petitioner that the Respondent started to demand money from her on the pretext of his businesses and the Petitioner used to help the Respondent with financial assistance from her own savings. Thereafter, the demands of the Respondent started to rise and the Respondent even forced the Petitioner to bring money from her old and ailing parents, failing of which the Respondent used to torture the Petitioner both physically and mentally. The Petitioner alleges that the Respondent used to come home in an inebriated condition and used to torture her both physically and mentally. Thereafter on 23.06.2020, the Petitioner along with her minor daughter were taken to her parental home by her younger sister and her brother-in-law and since then she is staying at her father's house at Tinsukia with her daughter.

5. Subsequently, the Petitioner lodged an FIR before the Tinsukia Police Station which was registered as Tinsukia P.S. Case No. 1151/2021 under Sections 498(A)/323/294/34 of the IPC read with Section 4/5 of the Dowry Prohibition Act. The Petitioner also filed C.R. Case No. 51/2021 against the Respondent before the learned SDJM, Tinsukia and also filed Maintenance Case No. 27/2021 under Section 125 of the Code of Criminal Procedure and Misc. (Domestic Violence) Case No. 28/2021 under Section 12 of the Protection of Women from Domestic Violence Act, 2005 in the Court of learned SDJM, Page No.# 3/4 Tinsukia, wherein the Respondent has been contesting the same by filing his written statement.

6. The Respondent filed a Matrimonial Title Suit No. 05/2022 in the Court of District Judge, Golaghat under Section 9 of the Hindu Marriage Act, 1955, praying for restitution of conjugal right in which the Petitioner after receipt of summon appeared and filed her written statement on 11.07.2022. The Respondent also filed a petition being No. 827 praying for allowing him to meet his minor daughter and the learned Court below after entertaining such prayer of the Respondent, directed both the Petitioner and the Respondent to appear before the Court on 16.08.2022 with their daughter.

7. The grounds taken by the Petitioner in the instant application for transfer are that she has no source of income and is fully dependent upon her old aged father and as such it would be difficult on her part to travel from Tinsukia to Golaghat as she has no one to accompany her to Golaghat inasmuch as, there is a serious threat of the life of the Petitioner and her minor daughter, thus it is not possible on the part of the Petitioner to travel ten/twelve hours up and down journey from Parbotia in the district of Tinsukia to Golaghat along with her minor daughter and to appear before the Court of learned District Judge, Golaghat. It is under such circumstances, the instant application was filed.

8. This Court had issued notice on 10.08.2022 and stayed further proceeding in Matrimonial Title Suit No. 05/2022 pending before the Court of learned District Judge, Golaghat.

9. I have heard the learned counsels for both the parties.

10. Taking into consideration that the Petitioner has expressed difficulties in her participation in the proceedings at Golaghat as she is a lady with a minor daughter and has no source of income and further taking into consideration that Page No.# 4/4 the Respondent is engaged in different businesses and he can very well participate if the proceedings are transferred with less inconvenience than the Petitioner, this Court is of the opinion that the Petitioner's prayer for transfer of the proceedings from the Court of learned District Judge, Golaghat to the Court of learned District Judge, Tinsukia should be allowed. It is also relevant to take note off that there are two other proceedings pending at Tinsukia between the Petitioner and the Respondent.

11. Accordingly, the proceeding in Matrimonial Title Suit No. 05/2022 is transferred from the Court of learned District Judge, Golaghat to the Court of learned District Judge, Tinsukia.

12. The Court of learned District Judge, Golaghat is directed to forthwith transfer the records to the Court of learned District Judge, Tinsukia.

13. Interim order passed earlier stands vacated and the parties are directed to appear before the Court of District Judge, Tinsukia on 01.03.2023 either personally or through their counsel.

14. The Registry is directed to intimate both the Courts below about this order.

15. With above observations and directions, the instant petition stands allowed and disposed of.

JUDGE Comparing Assistant